

23STCV26260 23STCV26260

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Case Number: 23STCV26260 Hearing Date: August 4, 2026 Dept: 517

PLAINTIFF'S MOTION FOR RECONSIDERATION

Pending before the Court is Plaintiff's motion under Code of Civil Procedure section 1008, subdivision (a) for reconsideration of the Court's June 2, 2026 order denying Plaintiff's motion for leave to amend her Complaint to reinstate her request for an award of punitive damages, which had been dismissed on summary judgment on January 8, 2026. The Court is denying Plaintiff's motion for reconsideration.

Section 1008, subdivision (a) provides as follows:

When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.

(Code Civ. Pro. § 1008, subd.(a).)

Long-standing precedent holds that "[f]acts of which a party seeking reconsideration was aware at the time of the original ruling are not 'new or different facts'" for purposes of section 1008, subdivision (a). (People v. Safety National Casualty Corp. (2010) 186 Cal.App.4th 959, 974.) The party must demonstrate that it could not, through the exercise of reasonable diligence, have presented the purported new facts at the time of the hearing on the ruling on which reconsideration is sought. (Ibid.; see also Hennigan v. White (2011) 199 Cal.App.4th 395, 406; McPherson v. City of Manhattan Beach (2000) 78 Cal.App.4th 1252, 1265.) "[T]he diligence requirement applicable to motions to reconsider on the basis of different facts is also applicable to motions to reconsider on the basis of different law." (Baldwin v. Home Savings of America (1997) 50 Cal.App.4th 1192, 1200.)

Plaintiff's motion for reconsideration is based on both purported new facts and purported new law.

As to the purported new facts, Plaintiff points to evidence in Defendant's claim file that, according to Plaintiff, was unavailable at the time of the summary judgment hearing. These facts are not new, however, for purposes of Plaintiff's motion for reconsideration of the order denying her motion for leave to amend. That is because they were known to the Plaintiff as of the time of the hearing on that motion. Because Plaintiff is not offering any new facts here, Plaintiff is essentially asking the Court to reconsider the order denying the motion for leave to amend on the ground that the order was incorrect. Claiming that an order that is the subject of a reconsideration motion was wrong is not a proper basis for such a motion, however.

As to the purported new law, Plaintiff cites to *Bostrom v. County of San Bernardino* (1995) 35 Cal.App.4th 1654. *Bostrom* obviously is not new. It is over thirty-years old. Plaintiff has failed to show why she did not cite it in connection with the hearing on the motion for leave to amend. In any event, *Bostrom* is of no utility to Plaintiff. The Court cited *Bostrom* in its order denying the motion for leave to amend for the proposition that a party opposing summary judgment or summary adjudication may seek leave to amend its pleading so as to avoid that fate. *Bostrom* does not, however, hold that a party may seek leave to amend a pleading after summary adjudication on an issue has been granted, which is what happened here with respect to Plaintiff's request for an award of punitive damages.

STATE OF THE TRIAL READINESS DOCUMENTS FOR PURPOSES OF DISCUSSION AT THE FINAL STATUS CONFERENCE

The joint witness list filed on May 29, 2026 reflects a time estimate of 29 hours, which strikes the Court as about right for this case.

The joint exhibit list filed on May 29, 2026 does not indicate whether there are any disputes as the authenticity or admissibility of exhibits. The Court will inquire at the FSC regarding the number of disputed exhibits there are.

The joint jury instructions filed on May 29, 2026 shows a number of disputed instructions. This require will some work before trial to resolve as many disputes as possible.